

Defendant/Mother testified that she encourages a close and continuing parent-child relationship between Plaintiff/Father and the minor child. The Court does not appreciate that Defendant/Mother withheld the minor child from Plaintiff/Father for a period of time, but the Court cannot hold it against Defendant/Mother as it appears she has tried to facilitate a relationship but does not understand how to, when Plaintiff/Father expects to always get his way. This Factor favors Defendant/Mother.

k. Domestic violence regardless of whether the violence was directed against or witnessed by the children.

This factor raises concerns regarding Plaintiff's/Father's behavior. The Court is specifically referencing the PPO, the police reports, and the testimony regarding Plaintiff/Father having a camera that he intended to send to Defendant's/Mother's home in a bag to monitor the activities at Defendant's/Mother's home. This Factor favors Defendant/Mother.

l. Any other factor considered as relevant to this custody dispute.

This Factor is a combination of all of the testimony and evidence. The Court is specifically referencing Plaintiff's/Father's inability to see how his behavior impacts the minor child; Plaintiff's/Father's inability to see how his behavior impacts the Defendant/Mother; along Plaintiff's/Father's behavior at work and the complaints filed by five (5) co-workers that led to his termination.

IT IS FURTHER ORDERED that the Court finds by clear and convincing evidence that Defendant/Mother shall have sole physical custody of the minor child.

IT IS FURTHER ORDERED that the Court finds by clear and convincing evidence that there is no foreseeable way that these parties can cooperate together to address legal custody concerns.